

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LARS B AMBLE,

Petitioner

VS.

ANTONIA TRIVYZA,

Respondent

) Case Number: FMS-16-386886

) Hearing Date: September 3, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Lars B Amble (Father) and Respondent Antonia Trivyza (Mother). They share one minor child: Kai Benjamin Amble (DOB: 09/24/12).
- 2) On October 23, 2025, Father filed a Request for Order seeking modification of custody and visitation and Family Code section 271 sanctions for attorney's fees and costs. Father requests the following orders:
 - a. Sole legal custody;
 - b. Sole physical custody;
 - c. Modification of parenting time such that Mother has parenting time on alternate weekends from Friday to Sunday;
 - d. In the alternative, a custody evaluation or a brief focused assessment to "shed light on the custody arrangement;" and
 - e. \$15,000 in Family Code section 271 sanctions for attorney's fees and costs. See attorney declaration filed October 23, 2025.

- 1 3) On November 14, 2025, Mother filed a Responsive Declaration to Father's October 23, 2025,
2 Request for Order.
- 3 4) On January 16, 2026, Father filed a Reply Declaration, which has been read and considered by
4 the Court.
- 5 5) On January 16, 2026, a Declaration of Erica Whitelaw was filed, which has been read and
6 considered by the Court.
- 7 6) On January 16, 2026, a Declaration of Autumn Teeter was filed, which has been read and
8 considered by the Court.
- 9 7) On January 16, 2026, a Declaration of Hatun Noguera was filed, which has been read and
10 considered by the Court.
- 11 8) On January 29, 2026, the Court issued the following orders:
 - 12 a. Mother and Father shall continue to have joint legal custody.
 - 13 b. Effective immediately, Father shall have sole physical custody.
 - 14 c. Mother's parenting time with the minor child shall be on the 1st, 3rd and 4th weekends of
15 each month from Friday after school until Sunday at 5:00 p.m. Mother shall pick up the
16 minor child after school on Fridays and Mother shall return the minor child to Father on
17 Sundays at 5:00 p.m., with the exchange to take place at the Starbucks located at the
18 intersection of Geary and Masonic in San Francisco, CA. This schedule shall commence
19 on Sunday, February 1, 2026, at 5:00 p.m., with the exchange at Starbucks.
 - 20 d. The Court grants Mother's request for a Tier II.
 - 21 e. The parties shall return to Court on April 16, 2026 to review outcome of the Tier II
22 assessment.
- 23 9) On April 16, 2026, the Court issued the following orders:
 - 24 a. Mother and Father shall continue to have joint legal custody of the minor child.
 - 25 b. Effective immediately, the parties shall share joint physical custody of the minor child.
 - 26 c. Effective immediately, the custodial schedule is altered to be a flexible schedule which
27 permits the minor to spend time at Mother's or Father's home at his own discretion.
28 Should the minor child wish to transfer from one party's home to the other, each parent
29 shall take the steps necessary to facilitate that transfer.

- d. The Court orders that the minor child will begin reconciliation therapy to address the concerns raised by the minor child in the Tier II interview and the minor child's resistance to spending time with Father.
- e. Father shall select the reconciliation therapist, and the selected therapist will work with Father and the minor child. Both parties shall cooperate in full with the therapeutic process as designed by the selected reconciliation therapist, based on his or her determination of the minor child's best interests. Notwithstanding the foregoing, the reconciliation therapist shall discuss with Father when and if it becomes appropriate and/or necessary to integrate Mother in the therapeutic process. That process shall not include Mother directly without Father's prior consent, absent a court order.
- f. Both parties shall ensure that the minor child participates in, including attendance in all appointments that take place on days that the minor child is in that party's custodial care. So, if the minor child is staying with Mother on the day of therapy, it is Mother's responsibility to ensure that the child is present for reconciliation therapy.
- g. Father shall advance the cost of reconciliation therapy and shall share the invoices and payment history with Mother. Mother shall reimburse Father 25% of any therapeutic expense not covered by insurance.
- h. The parties shall return to Court on June 4, 2025, at 9:00 a.m., to confirm that a reconciliation therapist has been selected and therapy has begun.

10) On May 26, 2026, Father filed a "Status Declaration of Petitioner Lars B. Amble for Review Hearing Regarding Modification of Child Custody & Visitation," which has been read and considered by the Court.

11) On June 4, 2026, the Court ordered the following:

- a. All existing orders remain in full force and effect.
- b. Given Father's May 26, 2026 declaration, the Court will continue the review hearing to September 3, 2026, at 9:00 a.m., in Department 403.
- c. Mother shall give the minor child physical and emotional space around the therapy sessions.

d. Both parties shall serve and file an update declaration with the Court no later than 10 days prior to the next hearing, informing the Court of the progress and status of reconciliation therapy.

e. Counsel for Father shall prepare the Findings and Order After Hearing.

12) On August 24, 2026, Mother filed an update declaration with the Court, which has been read and considered.

13) On August 26, 2026, Father filed a status declaration, which has been read and reviewed by the Court.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) Given the lack of progress, the Court is at a loss on how to proceed. No further action will be taken by the Court, at this time. Father and Mother shall continue to work with the minor child's therapists.

3) All existing orders remain in full force and effect.

4) Counsel for Father shall prepare the Findings and Order After Hearing.

5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).